



THE PUBLIC GENERAL ACTS OF 1965

Family Allowances Act 1965

1965 CHAPTER 53

An Act to consolidate the Family Allowances Acts 1945 to 1964 and certain related enactments.

[5th August 1965]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Grant of family allowances

1. Subject to the provisions of this Act, there shall be paid by the Minister for every family which includes two or more children, and for the benefit of the family as a whole, an allowance in respect of each child in the family other than the elder or eldest at the rate of eight shillings a week in respect of the first child other than the elder or eldest and ten shillings a week in respect of each other such child.

Direction for payment, and amount, of allowances.

2.—(1) A person shall be treated for the purposes of this Act as a child—

Meaning of "child".

- (a) during any period whilst he is under the upper limit of the compulsory school age; and
- (b) during any period before he attains the age of nineteen whilst he is undergoing full-time instruction in a school or is an apprentice; and
- (c) during any period before he attains the age of sixteen whilst he is by reason of illness or disability of mind

or body incapacitated, and likely to remain for a prolonged period incapacitated, for regular employment.

(2) For the purposes of this section—

- 1962 c. 12.
1944 c. 31.
- (a) the upper limit of the compulsory school age means, subject to section 9 of the Education Act 1962, the age that is for the time being that limit by virtue of section 35 of the Education Act 1944 together with any Order in Council made under that section ;
 - (b) a person who at any time attains the upper limit of the compulsory school age shall not be treated as being under that limit at any time thereafter, notwithstanding any subsequent change in that limit ;
 - (c) a person who becomes an apprentice after an interval of not more than one month from attaining the upper limit of the compulsory school age, or from ceasing to undergo full-time instruction in a school, shall be treated as having been an apprentice throughout the interval.

(3) In its application to Scotland, this section shall have effect as if for subsection (2)(a) thereof there were substituted the following:—

“(a) the upper limit of the compulsory school age means in relation to any person the age at which under the law for the time being in force his parents cease to be under obligation to cause him to receive efficient education.”

Meaning of
“family”.

3.—(1) Subject to the provisions of this Act, each of the following shall be treated for the purposes of this Act as constituting a family, that is to say—

- (a) a man and his wife living together, any child or children being issue of theirs, his or hers, and any child or children being maintained by them ;
- (b) a man not having a wife or not living together with his wife, any child or children being issue of his, and any child or children being maintained by him ; and
- (c) a woman not having a husband or not living together with her husband, any child or children being issue of hers, and any child or children being maintained by her.

(2) It shall be a condition of a child's being treated as included in a family as being issue of the man and his wife or one of them, of the man, or of the woman (according as the family falls within paragraph (a), (b) or (c) of subsection (1) of this section) that the child is living with them, with him or with her, as the case may be, or, if not, that the cost of providing for the child is contributed to by them taken together, by him, or by her, as the case may be, at the rate of eight shillings a week or more.

(3) The provisions of the Schedule to this Act shall have effect as to the circumstances in which a man and his wife living together, or such a man or woman as is mentioned in subsection (1)(b) or (c) of this section, is to be treated as maintaining a child, and for determining as between parents and persons maintaining children, or as between one parent of a child and the other, in what family a child is to be treated as included.

4.—(1) Allowances for any family shall belong—

Persons to whom allowances are to be paid.

- (a) in the case of the family of a man and his wife living together, to the wife, subject however to the provisions of subsections (2) and (3) of this section ;
- (b) in the case of the family of such a man as is mentioned in section 3(1)(b) of this Act, to him ;
- (c) in the case of the family of such a woman as is mentioned in section 3(1)(c) of this Act, to her.

(2) Sums to be paid on account of an allowance for the family of a man and his wife living together shall be receivable either by the man or by the wife.

(3) If in the case of a man and his wife living together a magistrates' court are satisfied, on a representation made to the court by way of complaint by either of them or by the Minister or the local authority, that one of them is not, as against the other, a proper recipient of allowances for their family, the court may order that sums on account of allowances for their family becoming receivable after the expiration of fourteen days from the date of the order shall, notwithstanding anything in subsection (2) of this section, be receivable, as between them, by the other only, and any order made under this subsection may be revoked or varied by a subsequent order of a magistrates' court on a representation made as aforesaid.

(4) It shall be the duty of a magistrates' court to send notification to the Minister of any order made by them under subsection (3) of this section as soon as may be after the order is made.

(5) The local authority for the purposes of subsection (3) of this section shall be—

- (a) in England and Wales, in the case of a county borough or London borough, the borough council, in the case of the City of London, the Common Council, and elsewhere the county council ;
- (b) in Scotland, in the case of a large burgh within the meaning of the Local Government (Scotland) Act 1947 c. 43, 1947, the town council, and elsewhere the county council, any burgh other than a large burgh being deemed to be included within the county in which it is situated.

(6) In the application of this section to Scotland, for any reference to a magistrates' court there shall be substituted a reference to the sheriff and subsection (3) shall have effect as if the words "by way of complaint" were omitted.

Claims, duration of allowances, and payment

Claims and
determination
of questions.

5.—(1) Subject to the provisions of this Act and to section 48(2)(c) of the Insurance Act (which provides that a claim for benefit under that Act may be treated as a claim, in the alternative, for a payment under this Act), and in accordance with regulations made under this Act, all claims for or in respect of allowances shall be made to the Minister.

(2) Part IV of the Insurance Act shall apply in relation to the determination of any question arising under this Act, being—

- (a) a question as to the right to an allowance in respect of any person for any family ; or
- (b) a question which by virtue of the Schedule to this Act falls to be decided by the Minister in his discretion,

as it applies to the determination of questions as to the right to benefit under the Insurance Act or, as the case may be, to such a question as is mentioned in paragraph (b) of this subsection arising under that Act, subject, in the case of such a question as is mentioned in paragraph (a) of this subsection, to any modifications prescribed for the purposes of this subsection under section 73 of that Act.

Period for
which
allowances are
to accrue.

6.—(1) An allowance shall be for a continuous period ascertained under the subsequent provisions of this section, and any award of an allowance shall be made accordingly.

(2) Subject to the provisions of section 7 of this Act, an allowance awarded shall begin to accrue—

- (a) if the claim was made within six months from the date of entitlement, on the date of entitlement ; or
- (b) if the claim was not made within six months from the date of entitlement, then at the beginning of the period of six months immediately preceding the date on which the claim was made.

In this subsection the expression "date of entitlement" means, in relation to an allowance awarded in respect of any person as being a child included in any family, the date on which all the requirements of this Act and of any relevant regulations for the existence of a right to an allowance in respect of that person for that family became satisfied, or, if when the award was made those requirements had become satisfied more than once, the date on which they last became satisfied.

(3) An allowance awarded in respect of any person as being a child included in the family of a man and his wife shall be

awarded not only for their family but also, with effect after the death of either of them whilst they are living together, for any family for the time being of the survivor, or of the survivor and a spouse of the survivor.

(4) Subject to the provisions of section 7 of this Act, an allowance awarded in respect of any person shall terminate when any of the requirements of this Act or of any relevant regulations for the existence of a right to an allowance in respect of that person ceases to be satisfied, or that person is no longer included in a family for which the allowance was awarded, or any of the requirements of this Act or of any relevant regulations for the existence of a right to an allowance for such a family in which that person is included ceases to be satisfied, whichever first occurs.

7.—(1) Allowances shall be payable by sums on account thereof receivable at such times, in such manner, whether through the Post Office or otherwise, and subject to such conditions, as may be prescribed.

Method of payment, and time for obtaining payment.

(2) The right to so much of an allowance as is payable by a sum on account thereof made receivable (whether unconditionally or subject to satisfaction of any prescribed conditions) on any day shall be extinguished at the expiration of six months from that day if payment thereof has not been obtained during that period.

(3) The regulations to be made for the purposes of this section may make provision for securing that the beginning of accrual of allowances shall coincide with a day in the week on which sums on account of allowances made receivable weekly are to become receivable, and that the termination of allowances shall coincide with a day next before such a day.

8.—(1) Without prejudice to the provisions of paragraph 1 of Schedule 7 to the Insurance Act (which relates to set-off of certain overpayments) and to the provisions of sections 13 and 14 of the National Assistance Act 1948 with respect to the abatement of payments in respect of arrears of allowance, the provisions of section 81(1) to (5) of the Insurance Act (which relate to the recovery of benefit under that Act which has been wrongly paid and to interim payment of such benefit) and of section 49(5) of the Insurance Act (which relates to the suspension of benefit) shall apply—

Recovery of allowances wrongly paid, interim payment of allowances, and arrears. 1948 c. 29.

- (a) in relation to an allowance and to sums paid on account of an allowance as they apply in relation to, or to sums paid by way of, benefit under the Insurance Act; and
- (b) in relation to the person to whom an allowance belongs as they apply in relation to a beneficiary under the Insurance Act,

but with the substitution in the said section 81(1) for the reference to the National Insurance Fund of a reference to the Minister.

(2) Regulations made under the said section 81(3) by virtue of subsection (1) of this section may, notwithstanding anything in any other provision of this Act, include provision as to the commencement of an allowance awarded for a family in respect of a child in respect of whom an allowance has under a previous award been payable for another family; and for the purposes of the said section 81(3) and (4) as applied by subsection (1) of this section, the determination of any question as to the date at which, by virtue of section 6 of this Act, an allowance terminates or has terminated under an award shall be treated as a review of the award.

1965 c. 52.

(3) Where, in the case of any person, any sum may, by virtue of any provision made for the purposes of this Act by regulations under the said section 81(3), be recovered by deduction from any payment under this Act, it may instead be recovered from him in whole or in part by deduction from benefit under the Insurance Act or from any payment under the National Insurance (Industrial Injuries) Act 1965, and any amount so recovered shall be paid to the Treasury.

(4) Any sums which a person is required to pay to the Minister by way of repayment of a sum paid as on account of an allowance which was not properly payable may, without prejudice to the recovery thereof as a debt due to the Crown, be recovered by the Minister summarily as a civil debt; and proceedings for the summary recovery as a civil debt of any such sum may, notwithstanding anything to the contrary in any Act, be brought at any time within twelve months from the time when that sum was paid or, where the proceedings are for the recovery of a consecutive series of sums, within twelve months from the date on which the last sum of the series was paid.

(5) In its application to Scotland, subsection (4) of this section shall have effect as if the words "summarily" and "summary" were omitted, and nothing in that subsection shall be construed as limiting the period within which proceedings for the recovery of any sum may be brought.

Penalty for
obtaining or
receiving
payment
wrongfully.

9. If any person—

- (a) with intent to obtain any sum as on account of an allowance, either as in that person's own right or as on behalf of another, furnishes any information which he knows to be false in a material particular, or recklessly furnishes any information which is false in a material particular, or withholds any material information; or
- (b) obtains or receives any sum as on account of an allowance, either as in that person's own right or as on behalf of another, knowing that it was not properly payable, or not properly receivable by him,

that person shall be liable on summary conviction to imprisonment for a term not exceeding three months or to a fine not exceeding fifty pounds or to both.

10.—(1) Every assignment of or charge on, and every agreement to assign or charge, an allowance or any part of an allowance or any sum to be paid on account of an allowance shall be void ; and on the bankruptcy of a person to whom an allowance belongs or by whom sums on account of an allowance are receivable, no rights in respect of the allowance or of any sum to be paid on account thereof shall pass to any trustee or other person acting on account of the creditors.

Allowances to be inalienable.

(2) Sums receivable by any person on account of an allowance shall not be included in calculating his means for the purposes of section 5 of the Debtors Act 1869.

1869. c. 62.

(3) In the application of this section to Scotland—

- (a) for the reference in subsection (1) to the bankruptcy of a person there shall be substituted a reference to the sequestration of the estate of a person ;
- (b) for the reference in subsection (2) to section 5 of the Debtors Act 1869 there shall be substituted a reference to section 4 of the Civil Imprisonment (Scotland) Act 1882 c. 42. 1882.

Exclusions in certain circumstances

11.—(1) A child shall not, for the purposes of this Act, be treated as included in any family as respects any period—

Exclusion of certain children.

- (a) during which his or her detention in an approved school is authorised—

(i) by an order made under any provision of the Children and Young Persons Act 1933 or by virtue of section 73 of that Act or Part I of Schedule 2 to the Criminal Justice Act 1961 ; or

1933 c. 12.
1961 c. 39.

(ii) by an order made under any provision of the Children and Young Persons (Scotland) Act 1937 or by virtue of section 77 of that Act or Part I of Schedule 2 to the Criminal Justice (Scotland) Act 1963,

1937 c. 37.
1963 c. 39.

and the child is not absent from the school under supervision ;

- (b) during which the child is liable to be detained by virtue of section 53 of the said Act of 1933 or section 57 of the said Act of 1937 and is not discharged on licence ;
- (c) during which there is in force a provision of an order made by virtue of section 9 of the Children and Young Persons Act 1963 or an order under section

1963 c. 37.

73(2) of the said Act of 1937 committing the child to custody in any place.

1956 c. 50.

(2) A child shall not, for the purposes of this Act, be treated as included in any family as respects any period during which there is in force an order under the said Act of 1933 or the said Act of 1937 committing the child to the care of a local authority, not being a period during which, under the provisions of section 5(1) of the Family Allowances and National Insurance Act 1956, the child is allowed by the authority to be under the control of a parent, guardian, relative or friend of the child.

1948 c. 43.

(3) A child in respect of whom there is in force a resolution of a local authority passed under section 2(1) of the Children Act 1948 shall not, for the purposes of this Act, be treated as included in any family:

Provided that this subsection shall not have effect as respects any period during which under the provisions of section 3 or 4 of the said Act of 1948 the child is allowed by the local authority to be, either for a fixed period or otherwise, under the control of a parent, guardian, relative or friend of the child.

1958 c. 5.
(7 & 8 Eliz. 2)

(4) Subsections (2) and (3) of this section shall not apply to a child in the care and possession of a person who has given in respect of that child such a notice of intention to apply for an adoption order as is mentioned in section 36(1) of the Adoption Act 1958 unless twelve weeks have elapsed since the giving of the notice without the application being made or the application has been refused by the court or withdrawn.

(5) Any reference in the foregoing provisions of this section to an order made or resolution passed under any enactment includes a reference to an order or resolution which by virtue of any other provision is deemed to be made or passed under that enactment.

(6) Where a person is entitled in respect of a child to a guardian's allowance under section 29 of the Insurance Act, any allowances payable under this Act for his family shall be such only as would be payable if that child were not included in the family.

Administrative provisions

Information
as to, and
proof of, age,
marriage or
death.

12. Section 91 of the Insurance Act (which makes provision for the furnishing by registrars of births, marriages and deaths of information for the purposes of that Act and for the obtaining of birth, marriage or death certificates for those purposes) shall apply for the purposes of this Act as it applies for the purposes of that Act.

Regulations.

13.—(1) The Minister, in conjunction with the Treasury so far as relates to matters with respect to which the Treasury so direct, and in conjunction with the Postmaster General so far as relates

to the Post Office, may make regulations for prescribing anything which under this Act is to be prescribed and generally for carrying this Act into effect, and in particular, but without prejudice to the generality of this subsection—

- (a) for prescribing the manner in which claims to allowances may be made ;
- (b) for specifying the circumstances in which a person is to be treated for the purposes of this Act as undergoing full-time instruction in a school or full-time training ;
- (c) for enabling a person to be appointed to exercise, on behalf of a claimant, or of a person to or by whom an allowance belongs or is receivable, who may be or become unable for the time being to act, any right or power which that claimant or person may be entitled to exercise under this Act, and for authorising a person so appointed to receive any sum on account of an allowance on behalf of that claimant or person ;
- (d) for imposing upon persons to whom allowances belong or by whom or on whose behalf sums on account of allowances are receivable the duty to furnish to the Minister information of facts affecting the right thereto ;
- (e) for making provision, in connection with the death of persons who had made claims for allowances or to whom allowances belonged or by whom sums on account of allowances were receivable, for enabling such claims to be proceeded with, for extending the period limited by section 7 of this Act for obtaining payment of such sums, for authorising payment or distribution of such sums to or amongst persons claiming as personal representatives, legatees, next of kin or creditors of such persons (or, in cases of illegitimacy of deceased persons, to or amongst others), and for dispensing with strict proof of the title of persons so claiming.

(2) Any regulations made under this Act by the Minister shall be made by statutory instrument and shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(3) If any person contravenes or fails to comply with any requirement of regulations made under this Act, he shall be liable on summary conviction to a fine not exceeding ten pounds.

14.—(1) Proceedings for an offence under this Act shall not be instituted in England or Wales except by or with the consent of the Minister or by an officer authorised in that behalf by special or general directions of the Minister. Provisions as to legal proceedings.

(2) Proceedings for the summary recovery as a civil debt of a sum due to the Minister under this Act may be instituted by an officer authorised in that behalf by special or general directions of the Minister.

(3) An officer authorised in that behalf by special or general directions of the Minister may, although not of counsel or a solicitor, prosecute or conduct any such proceedings as aforesaid before a magistrates' court.

(4) Proceedings for an offence under this Act may be commenced at any time within the period of three months from the date on which evidence, sufficient in the opinion of the Minister to justify a prosecution for the offence, comes to his knowledge, or within the period of twelve months from the date on which the offence was committed, whichever period last expires, and for the purposes of this subsection a certificate purporting to be signed by or on behalf of the Minister as to the date on which such evidence as aforesaid came to his knowledge shall be conclusive evidence thereof.

(5) In its application to Scotland, this section shall have effect as if—

- (a) in subsection (2) the word "summary" were omitted;
- (b) in subsection (3), for the reference to a magistrates' court there were substituted a reference to the sheriff;
- (c) in subsection (4), for the reference to evidence sufficient to justify a prosecution there were substituted a reference to evidence sufficient to justify a report to the Lord Advocate with a view to consideration of the question of prosecution.

Financial provisions

Exemption
from stamp
duty.

15. Stamp duty shall not be chargeable upon a draft or order for the payment of a sum on account of an allowance, or upon a receipt given for, or on the payment of, any such sum.

Expenses, etc.,
to be borne
out of moneys
provided by
Parliament.

16.—(1) There shall be paid out of moneys provided by Parliament—

- (a) any sums paid on account of allowances;
- (b) any expenses incurred in the administration of this Act, to such extent as may be sanctioned by the Treasury, other than expenses incurred by the Postmaster General;
- (c) such sums as are necessary to make good to the National Insurance Fund or the Industrial Injuries Fund, as the case may be, the amount by which any payments

to be made under section 1 of this Act are reduced by reference to sums borne by the Fund in question by virtue of paragraph 1 of Schedule 7 to the Insurance Act.

(2) For the purposes of subsection (1)(b) of this section, there shall be included among the expenses incurred in the administration of this Act—

- (a) any payments under section 80 of the Insurance Act (which relates to the remuneration of the National Insurance Commissioner and deputy Commissioners and other expenses in connection with the work of persons and tribunals appointed to determine questions under that Act) in so far as those payments are estimated by the Minister to be attributable to the determination of any such question arising under this Act as is mentioned in section 5(2) of this Act or to the operation of section 8(1) to (3) of this Act ;
- (b) such part of the sums referred to in section 85(2) of the Insurance Act as is attributable to the execution of this Act ;
- (c) any expenses attributable to section 12 of this Act.

Interpretation

17.—(1) A man and his wife shall not be deemed for the purposes of this Act to be living otherwise than together unless they are permanently living in separation either by agreement or under an order of a court, or one of them has deserted the other and the separation which is incident to the desertion has not come to an end.

Provisions as to certain special circumstances affecting the operation of s. 3.

(2) For the purposes of this Act, a child being legitimate issue of a deceased spouse of any person by an earlier marriage of the deceased spouse to another (including such a marriage which is void) shall be treated as issue of that person, and a child being illegitimate issue of a deceased spouse of any person shall be treated as issue of that person so far as regards any period during which the child is living with that person:

Provided that the foregoing provisions of this subsection shall not have effect in a case in which the marriage between the person in question and his or her deceased spouse was terminated otherwise than by the deceased spouse's death.

(3) Where a child born before the marriage of the child's parents has been legitimated by virtue of the subsequent marriage of the parents, the child shall, for the purposes of this Act, be deemed to be issue of the marriage.

(4) For the purposes of this Act, a child adopted under the Adoption of Children Act 1926, the Adoption of Children 1926 c. 29.

1930 c. 37. (Scotland) Act 1930, the Adoption Act 1950 or the Adoption
 1950 c. 26. Act 1958 or in pursuance of an order authorising the child's
 1958 c. 5. adoption made in Northern Ireland, the Isle of Man or any of
 (7 & 8 Eliz. 2.) the Channel Islands shall be treated as if the child were legiti-
 mate issue of the adopter, or, if the child was adopted by two
 spouses jointly, or by one of two spouses after their marriage,
 as if the child were legitimate issue of their marriage, and shall
 not be treated as being issue of any other person.

(5) An illegitimate child shall not be treated for the purposes of this Act as being issue of the child's father.

(6) References in this Act to the parents, a parent, the father, or the mother of a child, or to an illegitimate child, shall be construed in accordance with the provisions of subsections (2) to (5) of this section.

(7) A child shall not be deemed for the purposes of this Act to have ceased to live with a person by reason of any temporary absence, and in particular by reason of absence at any school, and a person who has been contributing at any rate to the cost of providing for a child, or has been maintaining a child, shall not be treated as having ceased so to contribute, or to maintain the child, by reason of any temporary interruption or reduction of his contribution to the cost of providing for the child, and the question whether any such absence (other than at a school), interruption or reduction is or is not to be treated as temporary for the said purposes shall be determined by reference to such rules as may be prescribed.

(8) For the purposes of this Act, a person shall be deemed according to the law in England and Wales, as well as according to the law in Scotland, not to have attained a given age until the commencement of the relevant anniversary of the day of his birth.

(9) A marriage performed outside the United Kingdom under a law which permits polygamy shall be treated for any purpose of this Act as being and having at all times been a valid marriage if and so long as the authority by whom any question or claim arising in connection with that purpose falls to be determined is satisfied that the marriage has in fact at all times been monogamous.

Meaning of
 "providing
 for" a child.

18.—(1) In this Act the expression "providing for" a child means making available for the child food, clothing, lodging, education and all other things reasonably required for the child's benefit having regard to all the circumstances.

(2) For the purposes of this Act—

(a) the making available in kind of anything used for providing for a child shall be treated as a contribution to

the cost of providing for the child of an amount equal to the value thereof ;

- (b) money paid or a thing made available in kind shall be treated as contributed by any person so far, and so far only, as it is paid or made available at that person's own expense or out of property belonging to that person beneficially.

19.—(1) In this Act, except where the context otherwise requires, the following expressions have the meanings hereby respectively assigned to them, that is to say— Definitions.

“allowance” means an allowance under this Act ;

“apprentice” means a person undergoing full-time training for any trade, business, profession, office, employment or vocation, and not in receipt of earnings exceeding two pounds a week (the weekly amount of a person's earnings being for this purpose calculated or estimated in such manner and on such basis as may be prescribed) ;

“the Insurance Act” means the National Insurance Act 1965 c. 51 1965 ;

“issue” means issue of the first generation ;

“the Minister” means the Minister of Pensions and National Insurance.

(2) Any reference in this Act to any other enactment shall, except so far as the context otherwise requires, be construed as a reference to that enactment as amended or applied by any other enactment, including any enactment contained in this Act.

Application of Act

20.—(1) It shall be a condition of the right to any allowance for the family of a man and his wife living together that either— Limitation of
extent of
application of
Act.

(a) the man is a British subject whose place of birth is in the United Kingdom, or, if not,

(b) such requirements as to nationality, residence, place of birth or other matters as may be prescribed are satisfied as respects the man, or his wife, or either or both of them, according as may be provided by regulations ;

and the like condition shall apply in the case of the family of such a man as is mentioned in section 3(1)(b) of this Act subject to the limitation that requirements may be prescribed as respects the man only, and in the case of the family of such a woman as is mentioned in section 3(1)(c) of this Act with the substitution

for the reference to the man in paragraph (a) of this subsection of a reference to the woman and subject to the limitation that requirements may be prescribed as respects the woman only.

(2) It shall be a condition of the right to any allowance for the family of a man and his wife living together that each or one of them is in Great Britain, and the like condition shall apply in the case of the family of such a man as is mentioned in the said section 3(1)(b) as respects the man, and in the case of the family of such a woman as is mentioned in the said section 3(1)(c) as respects the woman.

(3) It shall be a condition of a child's being treated as a member of any family that the child is in Great Britain.

(4) For the purposes of subsections (2) and (3) of this section the temporary presence of a person in Great Britain or the temporary absence of a person therefrom shall be disregarded, and the question whether the presence or absence of a person is or is not to be treated as temporary for the said purposes shall be determined by reference to such rules as may be prescribed.

(5) Sums to be paid on account of allowances shall be payable only in Great Britain.

Reciprocal
arrangements
with Northern
Ireland.

21.—(1) The Minister may, with the consent of the Treasury, make reciprocal arrangements with the authority administering any scheme of family allowances which is in force by virtue of legislation passed by the Parliament of Northern Ireland and which appears to the Minister to be a scheme substantially corresponding to that contained in this Act, being arrangements as respects the conditions mentioned in section 20 of this Act on the one hand and any conditions limiting the extent of the Northern Irish scheme on the other hand.

(2) Any such arrangements may include provision for the modification or adaptation of the respective schemes in relation to or in connection with persons affected by the arrangements, and regulations made under this Act may provide for such modification or adaptation of the provisions of this Act as may appear to the Minister to be requisite for giving effect to the arrangements or in consequence thereof, and for any necessary financial adjustments.

Reciprocal
agreements
with countries
outside United
Kingdom.

22.—(1) The provision of section 105 of the Insurance Act (which provides that, for the purpose of giving effect to any agreement with the government of any country outside the United Kingdom providing for reciprocity in matters such as are specified in subsection (1) of that section, Her Majesty

may by Order in Council make provision for modifying or adapting that Act in its application to cases affected by the agreement) and of section 106 (other than subsections (1) and (5)) and section 109 of that Act (which make general provision as to such Orders in Council) shall have effect as if—

- (a) the matters specified as aforesaid included matters relating to payments for purposes similar or comparable to the purposes of this Act ;
- (b) any reference in those provisions to the Insurance Act included a reference to this Act ; and
- (c) in relation to matters relating to such payments as aforesaid, there were omitted from the said section 105(2)(d) the words “ by payments into or out of the National Insurance Fund ”.

(2) Any regulations made before 5th July 1956 under section 25 of the Family Allowances Act 1945 and remaining in force immediately before the commencement of this Act, being regulations to give effect to reciprocal arrangements made under that section with an authority in a country outside the United Kingdom, shall continue in force until those arrangements are rescinded or until those regulations are revoked by an Order in Council by virtue of subsection (1) of this section. 1945 c. 41.

General

23.—(1) Any instrument in force immediately before the commencement of this Act and made under or by virtue of any enactment repealed by the Consequential Repeals Act but re-enacted in this Act, and any appointment, claim or award made or other thing whatsoever done under or by virtue of any such enactment, shall be deemed to have been made or done under or by virtue of the corresponding provision of this Act ; and anything begun under or by virtue of any such enactment may be continued under or by virtue of this Act as if begun under or by virtue of this Act. General savings, etc.

(2) So much of any document as refers expressly or by implication to any enactment repealed and re-enacted as aforesaid or to the Act containing that enactment shall, if and so far as the context permits, be construed as referring to the corresponding provision of this Act or, as the case may be, to this Act.

(3) Any regulations in force immediately before the commencement of this Act under section 1(5) of the Family Allowances and National Insurance Act 1959 (which relates to transitional provisions in connection with the change in the method of determination of questions with respect to rights to allowances effected by section 1 of that Act) shall, notwithstanding that the said section 1(5) is repealed and not re-enacted as aforesaid, continue in force in like manner, subject 1959 c. 18.

to the like power of revocation or variation, as if the said section 1(5) had been so re-enacted.

1889 c. 63. (4) In relation to any enactment repealed and re-enacted as aforesaid, section 38(1) of the Interpretation Act 1889 shall have effect as if the Consequential Repeals Act formed part of this Act; and nothing in subsections (1) and (2) of this section shall be taken as affecting the general application of the said section 38 as modified by this subsection with regard to the effect of repeals.

1965. c. 55. (5) In this section, "the Consequential Repeals Act" means the Statute Law Revision (Consequential Repeals) Act 1965.

Powers of
Parliament of
Northern
Ireland.
1920 c. 67.

1945 c. 41.

24. Notwithstanding anything in the Government of Ireland Act 1920, the Parliament of Northern Ireland shall have power, in connection with any scheme of family allowances established by any enactment of that Parliament, to make laws for purposes similar to the purposes of section 20, 21 or 22 of this Act and shall continue to have power to make laws for purposes similar to those of section 25 of the Family Allowances Act 1945 as originally enacted.

Short title,
extent and
commence-
ment.

25.—(1) This Act may be cited as the Family Allowances Act 1965.

(2) This Act except sections 23 and 24 thereof shall not extend to Northern Ireland.

1965 c. 51. (3) This Act shall come into force on the same day as the National Insurance Act 1965.

SCHEDULE

Section 3.

SUPPLEMENTARY PROVISIONS AS TO FAMILY

Circumstances in which a person is to be treated as maintaining a child

1.—(1) A person shall be treated for the purposes of this Act as maintaining a child—

- (a) if that person is the only person who contributes to the cost of providing for the child, or if that person contributes to the said cost an amount greater than any other one person contributes thereto ; or
- (b) if two or more persons of whom that person is one each of them contribute to the said cost an equal amount that is greater than any other one person contributes thereto, and it is agreed between the said two or more persons, or in default of agreement the Minister in his discretion decides, that, as between them, that person is to be preferred,

and not otherwise:

Provided that a person who under the foregoing provisions would be treated as maintaining a child shall not be so treated if his contribution to the cost of providing for the child is at a rate less than eight shillings a week, unless the child is living with him.

(2) For the purposes of this paragraph, a man and his wife living together shall be treated as one person and amounts contributed by them respectively shall be aggregated accordingly, and references to a person shall be construed as references to such persons as are mentioned in paragraphs (a), (b) and (c) respectively of section 3(1) of this Act, that is to say, a man and his wife living together, such a man as is mentioned in the said paragraph (b) and such a woman as is mentioned in the said paragraph (c).

Determination of the family in which a child capable of being treated as included in more than one family is to be included

2. Where a child could otherwise be treated under section 3 of this Act as included at the same time in one family as being issue of his parents or either of them, and in another family as being maintained by a person other than his parents or either of them, the child shall be treated as then included in that family only in which he can be treated as included as being issue of the parents or parent.

3. Where a child could otherwise be treated under section 3 of this Act as included at the same time in one family on the ground of the child's being issue of his father, and in another family on the ground of the child's being issue of his mother, the child shall be treated as then included in such one of those families to the exclusion of the other as may be agreed between the father and the mother, or in default of agreement as the Minister may in his discretion decide.